

- RAG Learning

3B.3 Global Governance: Human Rights and Environmental

Politics — Edexcel (9PL0) — Component 3B: Global Politics

Exam Tip: Component 3 has two routes. This is **3B (Global Politics)**; the alternative is **3A (Comparative Politics: USA)**. You sit one, never both.

Human rights and the environment are the two areas where global governance makes its most ambitious claims and has the weakest enforcement. Both are shaped by the same underlying problem: obligations are universal, and the machinery to enforce them runs through states that may be the violators.

International law — rules governing relations between states, from treaties, custom and general principles.

Universal human rights — rights held by all people by virtue of being human.

Humanitarian intervention — the use of force across borders to halt grave abuses.

Responsibility to Protect (R2P) — sovereignty carries a duty to protect populations; where a state manifestly fails, the responsibility passes to the international community.

Cultural relativism — the claim that rights framed as universal reflect particular cultural traditions.

Global commons — resources beyond national jurisdiction: the atmosphere, the high seas, Antarctica, outer space.

Tragedy of the commons — depletion of a shared resource by individuals acting in their own rational interest.

Sustainable development — meeting present needs without compromising future generations' ability to meet theirs.

Common but differentiated responsibility — shared responsibility, with obligations varying by historic emissions and capacity.

1. Human rights: origins and institutions

Instrument / body	Detail
Universal Declaration of Human Rights 1948	Adopted with no dissenting vote; not legally binding but the foundation of everything since
ICCPR and ICESCR 1966	The two binding covenants giving treaty force to civil/political and economic/social rights
ECHR 1950 / ECtHR	Regional, with the strongest enforcement record of any rights regime
ICJ	Disputes between states; jurisdiction requires consent
ICC (Rome Statute 1998, in force 2002)	Prosecutes individuals for genocide, war crimes, crimes against humanity and aggression
Ad hoc tribunals	ICTY (former Yugoslavia) and ICTR (Rwanda) — the precedents for the ICC

The ICC

Operates on **complementarity**: it acts only where a national jurisdiction is unwilling or unable genuinely to prosecute. Its significance is that it pierces the immunity sovereignty traditionally conferred on heads of state and commanders.

Criticism	Response
The US, Russia, China and India are not parties, so the most powerful are effectively exempt	Its jurisdiction is exactly what states granted — a limitation of the treaty, not a failing of the institution

Early caseload concentrated on African situations	Several of those situations were referred by the African states themselves
No police force; depends on states to arrest and surrender	True, and the decisive practical weakness
Indicting a sitting leader may remove any incentive to leave power — the peace-versus-justice objection	Impunity has its own costs, including for deterrence

Why enforcement is weak

- **No supranational enforcement authority** — compliance depends on the states that are often the alleged violators.
- **Consent-based jurisdiction** — states choose which treaties to ratify, enter reservations, and may decline court jurisdiction.
- **The Security Council bottleneck** — coercive action requires authorisation, which a P5 member can veto.
- **Sovereignty and non-intervention** — protected by the Charter, creating a genuine legal tension with rights obligations.
- **Selectivity** — enforcement falls overwhelmingly on weaker states.

What the regime does achieve: it supplies standards, language and evidence that domestic courts, NGOs and opposition movements use. Its influence operates through *domestic* politics rather than through international compulsion — which is the strongest defence available and worth stating precisely.

2. Humanitarian intervention and R2P

R2P, endorsed at the 2005 World Summit, has three pillars: the state's responsibility to protect its population; the international community's responsibility to assist; and its responsibility to respond, through peaceful means first and collective action authorised by the Security Council if necessary.

Case	Significance
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Rwanda 1994	Non-intervention despite clear warning; the case that made R2P politically possible
Srebrenica 1995	A UN "safe area" overrun; the failure of under-mandated peacekeeping
Kosovo 1999	NATO action without Security Council authorisation — "illegal but legitimate" in the standard formulation
Libya 2011	Resolution 1973 authorised civilian protection; widely seen as stretched into regime change
Syria	Russian and Chinese vetoes blocked action; the consequence of the Libya experience

The Libya–Syria sequence is the most important thing to know here. An intervention undertaken to save lives hardened resistance to later authorisations, and so arguably reduced the capacity to save lives afterwards. That is a genuine dilemma rather than a simple failure, and it gives you a sophisticated line in any R2P question.

The debate

For intervention	Against
Sovereignty cannot shield genocide; capacity to halt slaughter plus inaction is complicity	Non-intervention is the foundation of the system; a doctrine permitting border-crossing invites abuse
R2P reframes sovereignty as responsibility rather than licence	Applied where the powerful choose — a licence exercised by the strong, not a rule
Rwanda shows the cost of the alternative	Intervention frequently produces prolonged instability

3. Cultural relativism

The challenge: rights framed as universal reflect a particular liberal individualist tradition, emphasising individual autonomy over community, duty and social harmony. The "Asian values" debate of the 1990s and Islamic declarations of human rights advanced alternative framings.

The replies: the UDHR was adopted with no dissenting vote and drafted by a committee from several civilisations; near-universal ratification means relativists must explain why states signed. Certain prohibitions — torture, slavery, genocide — have *jus cogens* status, binding regardless of consent. And the objection is most often raised by governments rather than populations, which means it frequently functions to shield rulers from scrutiny.

The judgement: there is stronger cross-cultural agreement on the most fundamental prohibitions than relativists concede, and genuine divergence on family, religion and the balance between individual and collective claims. Universality is best defended as a claim about a *core*, and its credibility depends on being applied consistently to the powerful — which is where the record is weakest.

4. Environmental governance

Body / agreement	Function
UNFCCC 1992	The treaty framework for climate negotiation; its annual COP produced Kyoto and Paris
IPCC	Assesses and synthesises the science for policymakers; sets no targets
Kyoto Protocol 1997	Binding targets on developed states only; the US never ratified, Canada withdrew
Paris Agreement 2015	Nationally determined contributions set by each state, with transparency and a review cycle; near-universal participation

Why collective action is so difficult

- **Commons structure.** Each state bears the full cost of its own abatement while the benefit is shared, so all have an incentive to free-ride.

- **Timing.** Costs are immediate and concentrated; benefits are deferred and diffuse. Electoral cycles are short.
- **No enforcement authority.** Agreements rest on voluntary commitment and reputational pressure.
- **Distributional disagreement.** Developed states produced most cumulative emissions; developing states are now the largest current emitters and argue they are entitled to develop as others did. **Common but differentiated responsibility** acknowledges this without resolving it.
- **Domestic politics.** Fossil fuel interests are concentrated and organised; the beneficiaries of action are diffuse and include people not yet born.

Kyoto against Paris is the key comparison: Kyoto had binding targets and drove away the major emitters; Paris traded bindingness for near-universal participation. That was a deliberate design judgement that engagement matters more than compulsion — and it is exactly what realists predicted and liberals defend.

Exam Tip: For any environmental question, the decisive analytical point is that these obstacles **compound**: the commons structure makes defection rational, the absence of enforcement makes it costless, and the equity dispute supplies every state with a principled justification for inaction. That is why climate governance has produced extensive agreement and comparatively little abatement.

Quick recall

- UDHR 1948 (no dissenting vote); ICCPR and ICESCR 1966; ECHR 1950 with the strongest enforcement
- ICJ = states; ICC = individuals, on complementarity; ICTY and ICTR were the precedents
- US, Russia, China, India outside the ICC
- R2P 2005: three pillars; authorisation runs through the Security Council
- Rwanda 1994, Srebrenica 1995, Kosovo 1999 ("illegal but legitimate"), Libya 2011, Syria vetoes
- Libya hardened resistance to later authorisation — the central R2P dilemma
- *Jus cogens*: torture, slavery, genocide — binding regardless of consent

- UNFCCC 1992, IPCC, Kyoto 1997 (binding, narrow), Paris 2015 (voluntary, universal)